

MASTER SERVICES AGREEMENT

This agreement (the "Agreement") is made between Aurora Holdings Limited ("Customer") and Boreal Software GmbH ("Supplier").

1. Definitions and Interpretation

1.1 "Confidential Information" means all information disclosed by one party to the other that is marked confidential or would reasonably be understood to be confidential.

1.2 Clause headings are for convenience only and do not affect interpretation.

2. Services

2.1 Supplier shall provide the Services described in each Statement of Work with reasonable skill and care.

2.2 Supplier shall comply with all applicable laws in performing the Services.

3. Term and Termination

3.1 This Agreement commences on the Effective Date and continues for an initial term of one (1) years (the "Initial Term").

3.2 Following the Initial Term this Agreement shall renew automatically for successive periods of twelve (12) months unless either party gives not less than ninety (90) days' written notice of non-renewal.

3.3 Either party may terminate this Agreement for convenience on three (3) months' written notice to the other.

3.4 Either party may terminate this Agreement immediately on written notice if the other party commits a material breach which is not remedied within thirty (30) days of notice.

4. Fees and Payment

4.1 Customer shall pay each valid invoice within thirty (30) days of receipt.

4.2 All sums are exclusive of VAT, which shall be payable in addition at the applicable rate.

5. Confidentiality

5.1 Each party shall keep the other party's Confidential Information confidential and shall not disclose it except as permitted by this clause.

5.2 The obligations in this clause survive termination or expiry of this Agreement for a period of three (3) years.

6. Data Protection

6.1 Each party shall comply with applicable Data Protection Laws in connection with this Agreement.

6.2 Supplier shall process Customer Personal Data only on Customer's documented instructions and shall implement appropriate technical and organisational measures.

7. Indemnities

7.1 Supplier shall indemnify Customer against all losses arising from any claim that the Services infringe a third party's intellectual property rights.

7.2 The indemnified party shall notify the indemnifying party promptly of any claim.

8. Limitation of Liability

8.1 Nothing in this Agreement limits liability for death or personal injury caused by negligence, for fraud, or for any liability which cannot be limited by law.

8.2 Subject to the preceding sub-clause, each party's total aggregate liability under or in connection with this Agreement in any Contract Year shall not exceed one hundred (100) per cent of the Fees paid or payable in that Contract Year.

8.3 Neither party shall be liable for any indirect or consequential loss.

9. Intellectual Property

9.1 All intellectual property rights in the deliverables created under this Agreement shall vest in Customer on creation.

9.2 Supplier assigns to Customer, with full title guarantee, all such rights.

10. Assignment

10.1 Neither party may assign this Agreement without the prior written consent of the other, such consent not to be unreasonably withheld.

10.2 Either party may terminate this Agreement on thirty (30) days' notice if the other party undergoes a Change of Control.

11. Governing Law and Disputes

11.1 This Agreement and any dispute arising out of it shall be governed by the laws of England and Wales, and the courts of England and Wales shall have exclusive jurisdiction.

IN WITNESS WHEREOF the parties have executed this Agreement.